



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

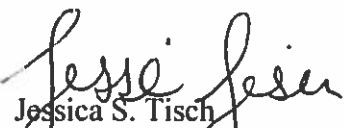
Re: Disciplinary Case No. 2022-27429 regarding Police Officer Brian Henn

Date: September 3, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") and involved allegations that Police Officer Brian Henn interfered with an individual's use of a recording device and threatened to arrest the individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, a penalty consisting of Training, as recommended by CCRB, will be imposed in this matter.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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Dr. MOHAMMAD KHALID
INTERIM CHAIR

February 20, 2025

The Honorable Jessica Trisch
Police Commissioner
New York City Police Department One Police Plaza
New York, NY 10038
VIA EMAIL

Re: *CCRB v. PO Brian Henn (CCRB Case no. 202103223, DADs no. 2022-27429, Tax no. 950580)*

Commissioner Tisch:

A negotiated settlement of a dismissal of the charge along with Department Imposed Training was agreed upon and signed by all the parties on January 16, 2025. Assistant Deputy Commissioner-Trials, Anne Stone endorsed the negotiated settlement on February 4, 2025. This is a downward deviation from the NYPD's Disciplinary Matrix. The CCRB offered this disposition for the following reasons:

1. PO Henn agreed to take responsibility for his misconduct.
2. While serving at the 69th Precinct, PO Henn received recognition for Excellent Police Duty 13 times and Meritorious Police Duty eight times; and
3. PO Henn has also been a member of service for almost 14 years and the CCRB believes there is great potential for training to correct/rehabilitate the behavior

Respectfully submitted,

Andre D. Applewhite
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Chief Prosecutor
NYC Civilian Complaint Review Board

Cc: John Tynan, Esq.